IN THE NATIONAL COMPANY LAW TRIBUNAL, NEW DELHI
PRINCIPAL BENCH

(CAA)-67(PB)/2018

IN THE MATTER OF:
Suraksha Deal Com Pvt. Ltd and
JPO Polychem Pvt. Ltd. .... Applicant/petitioner

Under Section 230-232.

Order delivered on 31.05.2018

Coram:
CHIEF JUSTICE (Retd.) M.M.KUMAR
Hon'ble President

S. K. MOHAPATRA
HON'BLE MEMBER (TECHNICAL)

PRESENTS
For the Petitioner : Mr. Vipul Ganda &
Ms. Mamta Rajput, Mr. Ajeyo Sharma, Advs.

ORDER

CA-437(PB)/2018:-

This is an application with a prayer for condonation of 13 days in filing second motion petition beyond the period of 7 days. As Rule 15 the Companies (Compromises, Arrangements and Amalgamations)Rules, 2016, the petition for confirming compromise or arrangements is required to be filed within a period of 7 days from the of filing the report by the Chairperson concerning respective meetings. The seven days period is also inferable from the same rule for cases because meetings are dispensed with.

In para 5, the applicant has made an effort to explain the delay and the same is read as under:-

"**5**. That, the aforesaid delay was caused due to inadvertence on part of the Petitioners due to following reasons:

g) The matter was heard on April 17, 2018 and the order was reserved;

h) The matter appeared on the cause list of April 20, 2018 for pronouncement of order but the counsel for the petitioners inadvertently missed checking the cause list on April 20, 2018 and the matter escaped the counsel's attentions.

i) Meanwhile, the counsel also missed checking the website for the order;

j) On the enquiry from the office of the Hon'ble Tribunal on May 2, 2018, the counsel came to know that the order was already pronounced on April 20, 2018;

k) A certified copy of the said order was immediately obtained on May 3, 2018 and the petition was filed thereafter;

l) However, in this process, there has been delay of 13 days in filing the petition which was neither deliberate nor intentional."

We accept the aforesaid explanation and condoned the delay of 13 days in filing of second motion petition.

The application stands disposed of.

(CAA)-67(PB)/2018:-

Order reserved.

Sd

(M.M.KUMAR)
PRESIDENT

Sd

(S. K. MOHAPATRA)
MEMBER (TECHNICAL)

31.05.2018
Aarti